

Godawari Chaturvedi v. State of U.P.

Allahabad High Court · Division Bench · 3 February 2010 · Writ-C No. 3127 of 2010 · **Writ dismissed; relegated to clause 6.5; one-month no coercion.**

HEADNOTE

A writ challenging an electricity bill as wrongly charged at commercial rates for a residential connection is not entertained. The consumer must seek correction from the competent authority under clause 6.5 of the U.P. Electricity Supply Code, 2005. Coercive action is stayed for one month to permit that approach.

FACTUAL SUMMARY

Godawari Chaturvedi held a residential electricity connection and received a bill dated 7 November 2009. She filed a writ petition in the Allahabad High Court, alleging that although the connection had been taken for residential use, the respondents had billed her at commercial rates. Counsel for the licensee submitted that in such matters the remedy lies under clause 6.5 of the U.P. Electricity Supply Code and that she should move the competent authority for correction of the bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

A writ challenging the correctness of an electricity bill, including a claim that a residential connection has been billed at commercial rates, is not entertained; the consumer is relegated to the competent authority under clause 6.5 of the U.P. Electricity Supply Code for correction of the bill. No interference is called for at that stage. The writ is dismissed, with a one-month restraint on coercive action so that the clause 6.5 remedy can be pursued. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CONNECTION WAS RESIDENTIAL AND WHETHER THE 7.11.2009 BILL AT COMMERCIAL RATES WAS INCORRECT

Merits of the tariff-category dispute left to the clause 6.5 authority. ¶ 1